

Fundamental Rights

Articles 12 to 35, the Five Writs, and the Labour Rights in Articles 23 and 24

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NOTE · HOW TO USE THIS DOCUMENT

Priority ★★★★★ · Study time 180 minutes across two sittings · Difficulty Moderate to High. This is the highest-value chapter in Module 1. Sections 4, 7 and 9 are the marks; Section 10 is the reason this chapter comes before Module 2. Revise Sections 13 and 14 forever.

Priority ratings and study times are the author's Analytical Estimates, not official UPSC weightage. Constitutional positions follow the Constitution of India and settled Supreme Court judgments; where a judicial position has changed over time, both the old and current positions are stated.

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1. Why This Chapter Earns Three Hours

Chapter 1.1 was foundation and Chapter 1.2 was insurance. This chapter is **revenue**. It is the one part of Polity where the APFC paper has repeatedly and directly awarded marks, and it is the bridge into the entire labour law module.

1.1 The PYQ case ★★★★★

PYQ-DERIVED. Questions traceable to this chapter and its immediate neighbours:

Paper	What was asked	Where it sits
2023	Which Article prohibits employment of children in a factory or mine	Article 24 - Section 9 of this chapter
2023	Whether the right of workers to resort to strike is a fundamental, statutory or other right	Article 19(1)(c) - Section 7.3
2015	What the Right to Free and Compulsory Education Act, 2009 provides	Article 21A - Section 8.4
2025	Uniform Civil Code	Directive Principle - Chapter 1.4, built on this chapter's logic

That is at least **three questions across two papers**, roughly **7.5 marks**, from one chapter - in a subject block the coaching consensus rates at only 4 to 6 questions in total. Fundamental Rights is where Polity concentrates.

MUST MASTER · THE ONE STRUCTURAL INSIGHT TO CARRY THROUGH THE WHOLE MANUAL

The Constitution splits worker protection across **two** Parts, and the split decides whether a worker can go to court:

- Part III, Articles 23 and 24** - freedom from forced labour and child labour. **Fundamental Rights. Enforceable.** A worker can move the Supreme Court directly under Article 32.
- Part IV, Articles 39 to 43A** - living wage, social assistance, humane conditions, worker participation. **Directive Principles. Not enforceable.** A worker has no direct remedy; these become real only through **statute** - the EPF Act, the Minimum Wages Act, the ESI Act.

That asymmetry is why your future job exists. Social security in India is delivered by legislation and by officers like an APFC, not by courts, because the Constitution deliberately made those promises non-justiciable. Understand this once and half of Modules 2 and 3 become predictable.

2. Article 12: Who Is Bound By Fundamental Rights? ★★★★★

Q. Fundamental Rights are guarantees against whom?

Ans. Against the "**State**" - and Article 12 defines that word far more widely than everyday usage.

Article 12 defines "State" to include:

- 1 The **Government and Parliament of India** - the executive and legislature of the Union
- 2 The **Government and Legislature of each State**
- 3 **All local authorities** - municipalities, panchayats, district boards, improvement trusts
- 4 **All other authorities** within the territory of India or under the control of the Government of India

The phrase "**other authorities**" is where the action is. The courts have read it to cover **statutory bodies** and **instrumentalities or agencies of the State**, using the test refined in *Ajay Hasia v. Khalid Mujib* (1981) - looking at financial control, functional control, monopoly status, and whether the body performs a public function.

MUST MASTER · EPFO IS THE 'STATE' FOR THE PURPOSES OF FUNDAMENTAL RIGHTS

The Employees' Provident Fund Organisation is a **statutory body** created under the EPF & MP Act, 1952, discharging a public function under Government control. It therefore falls squarely within "**other authorities**" in Article 12.

Three consequences you must be able to state:

- 1 EPFO is **bound by Fundamental Rights** - most practically by **Article 14**, so its determinations cannot be arbitrary or discriminatory.
- 2 EPFO's orders are **amenable to writ jurisdiction**. An aggrieved employer or employee may move a High Court under **Article 226**.
- 3 An inquiry determining dues - a Section 7A inquiry under the EPF Act - is a **quasi-judicial** function, so it must follow natural justice: notice, hearing, and reasoned order.

This single point connects Article 12, Article 14, Article 226 and Module 3. It is also a very likely interview question.

COMMON UPSC TRAP · WHAT ARTICLE 12 DOES NOT COVER

The **judiciary in its judicial capacity** is generally not treated as "State" for Article 12 - a judicial order cannot ordinarily be challenged as violating Fundamental Rights, though the judiciary's **administrative** actions can be. A **purely private company** with no State control is not "State", so Fundamental Rights are not enforceable against it - **except** Articles 15(2), 17, 23 and 24, which operate against private persons too.

3. Article 13: The Engine of Judicial Review ★★★★★

Q. What makes Fundamental Rights more than a promise?

Ans. Article 13, which declares that any law inconsistent with Fundamental Rights is **void**. This is the express textual basis of **judicial review** in India.

Clause	Effect
13(1)	Pre-constitutional laws inconsistent with Fundamental Rights are void to the extent of inconsistency
13(2)	The State shall not make any law taking away or abridging Fundamental Rights

Clause	Effect
13(3)	"Law" includes ordinance, order, bye-law, rule, regulation, notification, and custom or usage having the force of law
13(4)	A constitutional amendment is not "law" for this purpose - inserted by the 24th Amendment, 1971

Three doctrines flow from Article 13, and UPSC tests the distinction:

- 1 **Severability** - only the offending **part** of a statute is struck down, if it can be separated; the rest survives
- 2 **Eclipse** - a **pre-constitutional** law inconsistent with a Fundamental Right is not dead but **overshadowed**; remove the inconsistency and the law revives. *Bhikaji Narain Dhakras v. State of Madhya Pradesh* (1955)
- 3 **Waiver** - a citizen **cannot waive** a Fundamental Right. They exist in public interest, not merely for private benefit

COMMON UPSC TRAP · ARTICLE 13(4) AND THE LIMIT OF ITS PROTECTION

Article 13(4) says a constitutional amendment is not "law", so it cannot be struck down under Article 13. But that does **not** make amendments untouchable - **Kesavananda Bharati (1973)** held they can still be struck down for violating the **basic structure**. So: amendments escape **Article 13** but not **judicial review altogether**. That two-step is a favourite construction.

4. The Six Fundamental Rights, and Who Can Claim Them ★★★★★

Q. How many Fundamental Rights are there, and were there always this many?

Ans. Six today. Originally seven. The **Right to Property** was removed from Part III by the **44th Amendment Act, 1978** and now survives as an ordinary legal right under **Article 300A**.

Right	Articles	Note
Right to Equality	14 to 18	Article 14 for all persons; 15 and 16 for citizens only
Right to Freedom	19 to 22	Article 19 for citizens only
Right against Exploitation	23 to 24	The labour rights. All persons; operate against private parties too
Right to Freedom of Religion	25 to 28	All persons
Cultural and Educational Rights	29 to 30	Citizens and minorities
Right to Constitutional Remedies	32	The enforcement mechanism

4.1 Citizens only, versus all persons ★★★★★

MEMORY TECHNIQUE · THE FIVE CITIZEN-ONLY RIGHTS

Only **Articles 15, 16, 19, 29 and 30** are confined to citizens. Everything else in Part III is available to **any person**, including foreigners and, where applicable, companies.

Mnemonic: "**15, 16, 19, 29, 30**" - or remember the four *subjects*: **discrimination, public employment, the six freedoms, and minority rights**. All four are about membership of the political community, which is why they need citizenship.

This matters practically: a foreign national working in India **is** protected by Articles 14, 21, 23 and 24, but **cannot** invoke Article 19(1)(c) to claim a right to form a trade union. Compare Chapter 1.2, Section 5.

5. Right to Equality: Articles 14 to 18 ★★★★★☆

5.1 Article 14

"The State shall not deny to **any person equality before the law** or the **equal protection of the laws** within the territory of India."

- Equality before law** is the British idea - a **negative** concept: absence of special privilege, all subject to ordinary law
- Equal protection of laws** is the American idea - a **positive** concept: like should be treated alike

Article 14 permits **reasonable classification** but forbids **class legislation**. The test has two limbs: the classification must rest on an **intelligible differentia**, and that differentia must have a **rational nexus** with the object of the law. *E. P. Royappa* (1974) added that **arbitrariness** itself violates Article 14.

KNOW · EXCEPTIONS TO ARTICLE 14

The President and Governors enjoy immunity under **Article 361**; Members of Parliament and State legislatures have privileges under **Articles 105 and 194**; foreign sovereigns and diplomats have immunity.

5.2 Articles 15 and 16

Clause	Provision
15(1)	No discrimination only on grounds of religion, race, caste, sex, place of birth
15(2)	No denial of access to shops, hotels, public restaurants, wells, tanks, roads and places of public resort - operates against private persons too
15(3)	Special provision for women and children
15(4)	Special provision for SCs, STs and socially and educationally backward classes - 1st Amendment, 1951
15(5)	Reservation in educational institutions , including private ones - 93rd Amendment, 2005
15(6)	Up to 10% for economically weaker sections - 103rd Amendment, 2019
16(1)	Equality of opportunity in public employment
16(2)	No discrimination on grounds of religion, race, caste, sex, descent , place of birth or residence
16(4)	Reservation for backward classes not adequately represented
16(4A)	Reservation in promotion for SCs and STs - 77th Amendment, 1995
16(4B)	Carry forward of unfilled reserved vacancies - 81st Amendment, 2000
16(6)	10% for EWS - 103rd Amendment, 2019

COMMON UPSC TRAP · THE GROUNDS LISTS ARE NOT IDENTICAL

Article 15 lists five grounds. **Article 16** lists seven - it adds **descent** and **residence**. If a question asks whether "residence" is a prohibited ground, the answer depends on which Article is in issue: it is prohibited in **public employment** under Article 16(2), while Article 16(3) lets **Parliament** prescribe a residence requirement for certain posts.

Also note the word "**only**" in Article 15(1). Discrimination on grounds *including but not limited to* those listed may survive - the word "only" does real legal work, and UPSC knows it.

Indra Sawhney v. Union of India (1992) capped total reservations at **50%** and introduced the **creamy layer** exclusion for OBCs.

5.3 Articles 17 and 18 ★★★★★

- Article 17** abolishes "**untouchability**" and forbids its practice in any form. It is an **absolute** right - **no exceptions and no reasonable restrictions** - and it operates against **private individuals**. Enforced through the **Protection of Civil Rights Act, 1955** and the **SC and ST (Prevention of Atrocities) Act, 1989**.
- Article 18** abolishes **titles**. The State may still confer **military and academic distinctions**. In *Balaji Raghavan v. Union of India* (1996) the Supreme Court held that **Bharat Ratna and the Padma awards are not "titles"** under Article 18 - but they **cannot be used as a prefix or suffix** to a name.

6. Right to Freedom: The Six Freedoms in Article 19



Q. What does Article 19 actually guarantee, and to whom?

Ans. Six freedoms, to **citizens only**, each subject to **reasonable restrictions** on specified grounds.

Clause	Freedom	Restriction grounds
19(1)(a)	Speech and expression	Sovereignty and integrity of India, security of the State, friendly relations with foreign States, public order, decency or morality, contempt of court, defamation, incitement to an offence
19(1)(b)	Assembly - peaceably and without arms	Sovereignty and integrity, public order
19(1)(c)	Associations, unions or co-operative societies	Sovereignty and integrity, public order, morality
19(1)(d)	Movement throughout India	General public interest, protection of Scheduled Tribe interests
19(1)(e)	Residence in any part of India	General public interest, protection of Scheduled Tribe interests
19(1)(g)	Profession, occupation, trade or business	General public interest; the State may prescribe professional or technical qualifications and may itself carry on any trade

COMMON UPSC TRAP · TWO OMISSIONS PEOPLE GET WRONG

- 1 There is **no clause (f)**. The old 19(1)(f), the right to acquire, hold and dispose of property, was **omitted by the 44th Amendment, 1978**. The lettering jumps from (e) to (g).
- 2 "**Co-operative societies**" was added to 19(1)(c) by the **97th Amendment, 2011**. Assembly must be **peaceable and without arms** - an armed assembly is outside the protection entirely, not merely restrictable.

6.1 Article 19(1)(c) and trade unions - the APFC core ★★★★★

Q. Article 19(1)(c) guarantees the right to form unions. Does it therefore also guarantee the right to strike?

Ans. No. This is one of the most important distinctions in the entire APFC syllabus.

In **All India Bank Employees' Association v. National Industrial Tribunal (1962)**, the Supreme Court held that Article 19(1)(c) guarantees the right **to form** an association or union - but it does **not** carry with it any guaranteed right to:

- 1 **strike**
- 2 **collective bargaining**
- 3 **recognition** of the union by the employer
- 4 achieve the **purposes** for which the union was formed

MUST MASTER · RIGHT TO FORM A UNION VERSUS RIGHT TO STRIKE

Right	Nature	Source
To form a trade union	Fundamental Right	Article 19(1)(c)
To register a trade union	Statutory right	Trade Unions Act, 1926
To be recognised by the employer	Not a fundamental right	Statute or agreement
To strike	Statutory / legal right, regulated and restricted	Industrial Disputes Act, 1947

PYQ-DERIVED. The 2023 APFC paper asked precisely what kind of right the workers' right to strike is. The answer is that it is **not a fundamental right** - it is a legal right subject to statutory conditions such as notice requirements and prohibitions in public utility services. For government employees, *T. K. Rangarajan v. Government of Tamil Nadu* (2003) went further, holding there is no fundamental, statutory or equitable right to strike.

THINK LIKE UPSC

Watch the ladder of verbs: **form** → **register** → **recognise** → **strike**. Only the **first** is a Fundamental Right. UPSC builds options by shifting one rung: "*The right to recognition of a trade union flows from Article 19(1)(c)*" is false; "*The right to form a trade union flows from Article 19(1)(c)*" is true. The examiner can also flip the *nature* word - fundamental, statutory, legal, moral. Learn the ladder and both attacks fail.

7. Articles 20 to 22 ★★★★★

7.1 Article 20 - protection in respect of conviction

- 1 **No ex post facto law** - no conviction under a law that was not in force at the time of the act, and no penalty greater than that then prescribed. Applies to **criminal** law only, **not** to civil or tax laws
- 2 **No double jeopardy** - no prosecution and punishment twice for the **same offence**. Applies only to proceedings before a **court or judicial tribunal**, so a **departmental proceeding** after a criminal trial is permitted
- 3 **No self-incrimination** - protection against **testimonial compulsion**; it does **not** cover compulsory production of documents, fingerprints, or specimen signatures

7.2 Article 21 - life and personal liberty ★★★★★

"No person shall be deprived of his life or personal liberty except according to **procedure established by law**."

The turning point was **Maneka Gandhi v. Union of India (1978)**, which held that the procedure must be **fair, just and reasonable** - reading substantive content into what had been treated in *A. K. Gopalan* (1950) as a purely formal requirement. From that expansion the Court has derived a long list of rights, including:

- 1 **Right to livelihood** - *Olga Tellis v. Bombay Municipal Corporation* (1985)
- 2 **Right to health** and to medical care
- 3 **Right to shelter**, to a clean environment, to legal aid, to a speedy trial
- 4 **Right to privacy** - *K. S. Puttaswamy v. Union of India* (2017), a nine-judge bench

HIGH YIELD · WHY ARTICLE 21 MATTERS TO SOCIAL SECURITY

The **right to livelihood** under Article 21 and the **right to health** are the constitutional hooks that let courts push the State toward welfare outcomes that Part IV only *directs*. When a judgment speaks of a worker's entitlement to social security as part of the right to life with dignity, it is doing so through Article 21 - because Articles 41 and 43 by themselves are not enforceable. This is the standard route by which a non-justiciable directive acquires teeth.

7.3 Article 21A - the right to education ★★★★★☆

- ¹ Inserted by the **86th Amendment Act, 2002**
- ² Guarantees **free and compulsory education to all children aged 6 to 14 years**
- ³ The same amendment recast **Article 45** to cover early childhood care and education for children **below 6**, and added **Article 51A(k)**, a fundamental duty on parents and guardians
- ⁴ Implemented by the **Right of Children to Free and Compulsory Education (RTE) Act, 2009**, in force from **1 April 2010**

PYQ CONNECTION · ACTUALLY ASKED

PYQ-DERIVED. The 2015 APFC paper asked what the Right to Free and Compulsory Education Act, 2009 provides. The examinable content is the **age band 6 to 14** and the fact that the parent Article is **21A**, not Article 45. Note the trap: the **Directive Principle** in Article 45 now deals with the **under-6** group, while the **Fundamental Right** in Article 21A covers **6 to 14**.

7.4 Article 22 - arrest and detention

Ordinary arrest	Preventive detention
Right to be informed of the grounds of arrest	Detention without trial to prevent an apprehended act
Right to consult a legal practitioner	Detention beyond 3 months requires the opinion of an Advisory Board
Production before the nearest magistrate within 24 hours , excluding travel time	The Advisory Board consists of persons qualified to be High Court judges
Release after 24 hours unless the magistrate authorises further detention	Grounds must be communicated to the detainee, though facts against the public interest may be withheld

COMMON UPSC TRAP · A TRAP BUILT ON AN AMENDMENT THAT NEVER COMMENCED

The **44th Amendment, 1978** sought to reduce the maximum period of preventive detention without Advisory Board opinion from **3 months to 2 months** - but that provision was **never brought into force**. The operative figure therefore remains **3 months**.

If an option says "2 months", it is wrong in practice, however plausible it looks. Article 22's ordinary-arrest safeguards also **do not apply** to enemy aliens or to persons under preventive detention.

8. Right against Exploitation: Articles 23 and 24



This is the single most important section of Module 1 for an APFC candidate. Read it twice.

8.1 Article 23 - forced labour

Text in substance: traffic in human beings, **begar**, and other similar forms of **forced labour** are prohibited, and contravention is an offence punishable by law.

Four properties you must be able to state:

- 1 It is available to **citizens and non-citizens alike**
- 2 It operates against the **State and private individuals** - one of the few Fundamental Rights that binds private parties
- 3 **Exception:** the State may impose **compulsory service for public purposes** - for example conscription or community service - but in doing so it **may not discriminate** on grounds only of religion, race, caste or class
- 4 Enforced through the **Bonded Labour System (Abolition) Act, 1976**, the **Immoral Traffic (Prevention) Act, 1956**, and the **Minimum Wages Act, 1948**

MUST MASTER · PAYING BELOW THE MINIMUM WAGE IS FORCED LABOUR

In **People's Union for Democratic Rights v. Union of India (1982)** - the *Asiad Workers* case - the Supreme Court held that the expression "forced labour" in Article 23 covers labour rendered for remuneration **less than the statutory minimum wage**.

The reasoning is that where a person works for less than the minimum wage, the consent is not truly free - it is compelled by poverty. Force need not be physical.

Why this is a high-value link: it converts a wage question into a **constitutional** question. The Minimum Wages Act, 1948 (Module 2) is not merely a welfare statute - underpaying is a violation of a **Fundamental Right** enforceable under Article 32. *Bandhua Mukti Morcha v. Union of India* (1984) applied the same logic to bonded labour.

8.2 Article 24 - child labour ★★★★★

Text in substance: no child below the age of **14 years** shall be employed to work in any **factory or mine**, or engaged in any other **hazardous employment**.

COMMON UPSC TRAP · READ THE SCOPE OF ARTICLE 24 EXACTLY

Article 24 prohibits child labour in **factories, mines and hazardous employment**. On its own terms it does **not** prohibit employment of a child in **non-hazardous** work - a domestic setting or a small shop, for instance.

That gap was closed by **statute, not by the Constitution**. The **Child Labour (Prohibition and Regulation) Amendment Act, 2016** renamed the 1986 Act the **Child and Adolescent Labour (Prohibition and Regulation) Act** and now prohibits employment of children below 14 in **all occupations and processes**, with narrow exceptions for helping in a **family enterprise** in non-hazardous work outside school hours, and working as an **artist** in the audio-visual entertainment industry, **excluding circuses**. It separately bars **adolescents aged 14 to 18** from **hazardous** occupations.

So the exam-safe formulation is: **Article 24 = factory, mine, hazardous employment. The blanket ban on all occupations comes from the 2016 statutory amendment.** Confusing the constitutional scope with the statutory scope is exactly the distinction UPSC tests.

Related provisions to recognise now and study in Module 2:

- 1 **Factories Act, 1948, Section 67** - no child below **14** may be employed in a factory
- 2 **Adolescents (14 to 18)** may work only with a **certificate of fitness**
- 3 **Article 39(f)** and **Article 45** support Article 24 from Part IV
- 4 **Commissions for Protection of Child Rights Act, 2005**

PYQ CONNECTION · ACTUALLY ASKED

PYQ-DERIVED. The 2023 APFC paper asked which Article of the Constitution prohibits employment of children in a factory or mine or any other hazardous employment. The answer is **Article 24**. Note how closely the question tracked the constitutional text - which is why memorising "factory, mine, hazardous" verbatim is worth more than reading a chapter on child labour policy.

9. Religion, Culture and Education: Articles 25 to 30 ★★☆☆☆

Recognition level only. These have not appeared in the APFC papers I analysed.

Article	Provision
25	Freedom of conscience and the right freely to profess, practise and propagate religion, subject to public order, morality and health
26	Freedom of religious denominations to manage their own affairs, property and institutions
27	No person may be compelled to pay taxes for the promotion of any particular religion
28	No religious instruction in educational institutions wholly maintained out of State funds
29	Protection of the interests of any section of citizens - language, script, culture; and no denial of admission to State-aided institutions on grounds of religion, race, caste or language
30	Right of minorities to establish and administer educational institutions of their choice

KNOW · ONE DISTINCTION WORTH A MARK

Article 29 protects **any section of citizens**, not only minorities - despite its marginal heading. **Article 30** is confined to **minorities**, religious or linguistic. Options that describe Article 29 as a minorities-only right are testing this.

10. Article 32 and the Five Writs ★★★★★

Q. What did Ambedkar call Article 32, and why?

Ans. "The very soul of the Constitution and the very heart of it." Because a right without a remedy is a slogan - Article 32 is the enforcement mechanism that makes the rest of Part III operative, and it is itself a Fundamental Right.

10.1 Article 32 compared with Article 226 ★★★★★

Feature	Article 32 - Supreme Court	Article 226 - High Court
Purpose	Only enforcement of Fundamental Rights	Fundamental Rights and any other legal right
Scope	Narrower	Wider
Nature	Is itself a Fundamental Right - the Court cannot refuse relief where a violation is shown	A discretionary constitutional power - the Court may decline
Territory	All-India	Within the High Court's territorial jurisdiction
Suspension	May be suspended during a National Emergency under Article 359	Not suspended in the same way

COMMON UPSC TRAP · THE COUNTER-INTUITIVE ONE

The **High Court's writ jurisdiction is WIDER than the Supreme Court's**, because Article 226 covers ordinary legal rights as well as Fundamental Rights. Most candidates assume the Supreme Court must have the broader power because it is the higher court. It does not - on writs, Article 226 is broader.

This is why a challenge to an **EPFO order** normally goes to a **High Court under Article 226**: the grievance is usually a statutory one, not a Fundamental Rights violation, and Article 32 would not lie.

10.2 The five writs ★★★★★

Writ	Literally	Issued against	Purpose and limits
Habeas Corpus	"to have the body"	Public authorities and private persons	Release from unlawful detention . Not issued where detention is lawful, or ordered by a competent court, or for contempt
Mandamus	"we command"	Public official, public body, corporation, inferior court, tribunal, government	To compel performance of a public duty wrongly refused. Not against a private person, not to enforce a discretionary duty, not against the President or a Governor
Prohibition	"to forbid"	Judicial and quasi-judicial bodies only	Preventive - stops a lower court or tribunal exceeding its jurisdiction . Not against administrative or legislative bodies, or private individuals
Certiorari	"to be certified"	Lower courts, tribunals, and since 1991 administrative authorities affecting rights	Curative - transfers a pending case or quashes an order already made . Not against legislative bodies or private individuals
Quo Warranto	"by what authority"	A person holding a public office	Tests the legality of the claim to a substantive public office created by statute or the Constitution. Any interested person may apply - not only an aggrieved party

MEMORY TECHNIQUE · SEPARATING THE TWO THAT EVERYONE CONFUSES

Prohibition and **Certiorari** both run from a higher court to a lower one. The difference is **timing**:

1 **Prohibition = PREVENTIVE**. Issued **while** the proceeding is pending, to stop it going further. "P for Prevent."

2 **Certiorari = CURATIVE**. Issued **after** the order, to quash it. "C for Cure" and "C for Cancel."

And two locus standi points: **Habeas Corpus** can be sought by **anyone** on behalf of a detainee, and **Quo Warranto** by **any interested person**. The other three generally require an aggrieved party.

11. Articles 33 to 35, and Suspension in an Emergency ★★★★★

- 1 **Article 33 - Parliament** may restrict or abrogate the Fundamental Rights of members of the **armed forces**, forces charged with maintaining public order, intelligence organisations, and their telecommunication systems
- 2 **Article 34** - restriction on rights while **martial law** is in force
- 3 **Article 35 - only Parliament**, not State legislatures, may make laws to give effect to certain Fundamental Rights

Article	Effect during a National Emergency
358	Article 19 is suspended - and, after the 44th Amendment, only where the Emergency is declared on grounds of war or external aggression , not armed rebellion
359	The President may suspend the right to move any court for enforcement of Fundamental Rights - except Articles 20 and 21 , an exception inserted by the 44th Amendment, 1978

MUST MASTER · ARTICLES 20 AND 21 CAN NEVER BE SUSPENDED

Since the 44th Amendment, **Articles 20 and 21 survive every emergency**. This was a direct response to the 1975-77 Emergency. If an option claims that all Fundamental Rights may be suspended during a National Emergency, it is **wrong**.

Distinguish the two mechanisms: **Article 358 suspends the right itself** (only Article 19); **Article 359 suspends the enforcement** of rights (all except 20 and 21).

12. The APFC Connection - Consolidated ★★★★★

Eight threads run from this chapter into your job and into Modules 2 and 3.

Provision	Constitutional point	APFC consequence
Article 12	EPFO is "other authority" = State	EPFO bound by Article 14; orders challengeable by writ; Section 7A inquiry is quasi-judicial and must follow natural justice
Article 14	No arbitrariness	EPFO determinations must be reasoned and consistent
Article 16	Equality in public employment	The APFC post itself; reservation and eligibility rules
Article 19(1)(c)	Right to form unions is fundamental; strike is not	Trade Unions Act 1926 registration and recognition; Industrial Disputes Act 1947 strike regulation. Asked in 2023
Article 21	Right to livelihood and health	The route by which non-justiciable welfare directives acquire judicial force
Article 21A	Education, 6 to 14	Reinforces Article 24 - a child in school is a child not in a factory. Asked in 2015
Article 23	Below-minimum-wage work is forced labour	Minimum Wages Act 1948 breaches become constitutional violations
Article 24	Factory, mine, hazardous - below 14	Factories Act s.67; Child and Adolescent Labour Act. Asked in 2023

MINI CASE STUDY · ONE FACT PATTERN, FOUR PROVISIONS

A contractor engaged for a public construction project employs 40 workers, including three aged 13, pays adults below the notified minimum wage, and the principal employer does not remit provident fund contributions. The workers form an association; the contractor refuses to deal with it and dismisses the office-bearers when they threaten to strike.

Map it:

- 1 Employing 13-year-olds on a construction site - **Article 24** violation, plus the Child and Adolescent Labour Act
- 2 Paying below the minimum wage - **Article 23** forced labour, on *PUDR* (1982), plus the Minimum Wages Act 1948
- 3 Forming the association - protected by **Article 19(1)(c)**; but the refusal to **recognise** it violates no Fundamental Right, and the threatened **strike** is governed by the Industrial Disputes Act, not by Article 19
- 4 Non-remittance of provident fund dues - a **statutory** default under the EPF & MP Act 1952, determined in a Section 7A inquiry; the constitutional hook is only indirect, via **Article 21** livelihood reasoning

Notice how the enforceable claims cluster in **Part III** while the *money* questions sit in **statute**. That is the working reality of an APFC's job.

13. Common UPSC Traps - Consolidated

Trap	Correct position
The right to strike is a Fundamental Right	No. Article 19(1)(c) protects the right to form a union only - <i>All India Bank Employees' Association</i> , 1962

Trap	Correct position
Recognition of a trade union flows from Article 19(1)(c)	It does not ; recognition rests on statute or agreement
Article 24 bans all child labour	Constitutionally only factory, mine, hazardous . The blanket ban is statutory - 2016 amendment
Article 23 requires physical force	No - paying below the minimum wage is forced labour (<i>PUDR</i> , 1982)
Article 23 has no exceptions	It permits compulsory service for public purposes , without discrimination
Article 17 permits reasonable restrictions	Article 17 is absolute , with no exceptions
Fundamental Rights bind only the State	Articles 15(2), 17, 23 and 24 also bind private persons
There are seven Fundamental Rights	Six . Property removed by the 44th Amendment, 1978 ; now Article 300A
Article 19 available to all persons	Citizens only . So are Articles 15, 16, 29 and 30
The Supreme Court's writ jurisdiction is wider	Article 226 is wider - it covers other legal rights too
Prohibition quashes an order already passed	That is certiorari . Prohibition is preventive
Mandamus lies against a private company	No - only for a public duty; also not against the President or a Governor
All Fundamental Rights may be suspended in an Emergency	Articles 20 and 21 can never be suspended - 44th Amendment
Article 15 bars discrimination on grounds of residence	That is Article 16(2) . Article 15 lists five grounds only
A constitutional amendment is "law" under Article 13	Not since the 24th Amendment - but it can still be struck down for violating the basic structure
Preventive detention beyond 2 months needs an Advisory Board	The figure is 3 months - the 44th Amendment's reduction was never brought into force
Article 21A covers children below 6	It covers 6 to 14 . The under-6 group is in Article 45 , a Directive Principle

14. Practice MCQs

Level 1 - Basic recall

Q. 1. Which of the following Fundamental Rights is available to citizens only?

(a) Article 14 (b) Article 19 (c) Article 21 (d) Article 23

Q. 2. The Right to Property was removed from the list of Fundamental Rights by

(a) the 42nd Amendment, 1976 (b) the 44th Amendment, 1978 (c) the 24th Amendment, 1971 (d) the 86th Amendment, 2002

Q. 3. Article 24 prohibits the employment of children below the age of 14 years in

(a) all occupations and processes (b) any factory, mine or other hazardous employment (c) only factories and mines (d) any employment except a family enterprise

Level 2 - Conceptual

Q. 4. The right of workers to resort to a strike is

(a) a Fundamental Right under Article 19(1)(c) (b) a Fundamental Right under Article 19(1)(a) (c) a legal right regulated by statute (d) a constitutional right implied in Article 43

Q. 5. In the *Asiad Workers* case the Supreme Court held that "forced labour" under Article 23 includes

(a) any labour performed without a written contract (b) labour for remuneration less than the statutory minimum wage (c) labour performed beyond nine hours a day (d) labour performed by migrant workers

Q. 6. Which writ is described as curative rather than preventive?

(a) Prohibition (b) Certiorari (c) Mandamus (d) Quo Warranto

Q. 7. Which one of the following statements about the writ jurisdiction of the courts is correct?

(a) Article 32 is wider in scope than Article 226 (b) Article 226 can be used only to enforce Fundamental Rights (c) Article 226 is wider because it covers other legal rights as well (d) Both Articles are confined to Fundamental Rights

Level 3 - Statement based

Q. 8. Consider the following statements about Article 19(1)(c):

- It guarantees the right to form associations, unions and co-operative societies.
- It guarantees the right of a union to be recognised by the employer.
- The reference to co-operative societies was inserted by the 97th Amendment.

Which of the above are correct? (a) 1 and 2 only (b) 1 and 3 only (c) 2 and 3 only (d) 1, 2 and 3

Q. 9. Consider the following statements:

- Article 23 operates against private individuals as well as the State.
- Article 23 permits the State to impose compulsory service for public purposes.
- Article 23 is available only to citizens.

Which of the above are correct? (a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 10. Consider the following statements regarding suspension of Fundamental Rights during a National Emergency:

- Article 358 suspends Article 19.
- Under Article 359 the President may suspend the enforcement of all Fundamental Rights without exception.
- Articles 20 and 21 cannot be suspended.

Which of the above are correct? (a) 1 and 2 only (b) 1 and 3 only (c) 2 and 3 only (d) 1, 2 and 3

Q. 11. Which of the following are prohibited grounds of discrimination under Article 16(2) but not listed in Article 15(1)?

- Descent
- Residence
- Place of birth

Select the correct answer: (a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Level 4 - Elimination and application

Q. 12. An employer challenges an order of the Employees' Provident Fund Organisation determining dues under Section 7A of the EPF & MP Act, 1952. Which of the following is the most accurate position?

(a) No writ lies because EPFO is not "State" under Article 12 (b) A writ lies under Article 32 only, since EPFO is a statutory body (c) A writ ordinarily lies under Article 226, as the grievance concerns a statutory right (d) No writ lies because the dispute is purely contractual

Q. 13. A statute enacted in 1948 was inconsistent with a Fundamental Right when the Constitution commenced. The Fundamental Right is later amended so that the inconsistency disappears. The 1948 statute

(a) remains void, as it was void from the beginning (b) revives, by application of the doctrine of eclipse (c) must be re-enacted by Parliament (d) revives only if Parliament passes a validating law

Q. 14. Which one of the following is not correct?

(a) Article 17 admits of no exceptions (b) Bharat Ratna is not a "title" within Article 18 (c) Article 29 protects only religious and linguistic minorities (d) Mandamus cannot be issued against the President of India

15. Answers and Explanations

Q	Ans	Explanation
1	b	Only Articles 15, 16, 19, 29 and 30 are citizen-only. Articles 14, 21 and 23 extend to all persons
2	b	44th Amendment, 1978 ; property now a legal right under Article 300A
3	b	The constitutional scope is factory, mine or other hazardous employment . Option (a) states the statutory position after the 2016 amendment - a different question
4	c	A legal right regulated by the Industrial Disputes Act, 1947. <i>All India Bank Employees' Association</i> (1962) held Article 19(1)(c) does not guarantee a right to strike
5	b	<i>PUDR v. Union of India</i> (1982) - remuneration below the statutory minimum wage amounts to forced labour
6	b	Certiorari quashes an order already made and is curative; prohibition is preventive
7	c	Article 226 is wider - it covers Fundamental Rights and other legal rights, whereas Article 32 is confined to Fundamental Rights
8	b	Statement 2 is wrong - recognition is not guaranteed by Article 19(1)(c). Co-operative societies were added by the 97th Amendment, 2011
9	a	Statement 3 is wrong - Article 23 protects all persons , not only citizens
10	b	Statement 2 is wrong - Article 359 cannot cover Articles 20 and 21 after the 44th Amendment
11	a	Article 16(2) adds descent and residence . Place of birth appears in both Articles 15(1) and 16(2), so statement 3 fails the "not listed in Article 15" test
12	c	EPFO is "State" under Article 12, so (a) fails. But a Section 7A determination concerns a statutory right, so Article 226 is the appropriate route; Article 32 requires a Fundamental Rights violation
13	b	Doctrine of eclipse - a pre-constitutional law is overshadowed, not void from inception, and revives once the inconsistency is removed
14	c	Article 29 protects "any section of citizens" , not only minorities - that limitation belongs to Article 30. The other three statements are correct

THINK LIKE UPSC · WHAT QUESTIONS 3, 11 AND 12 WERE REALLY DOING

Each one punished a **near-miss**, not ignorance.

- Q3** offered the statutorily correct answer as a distractor to a **constitutional** question. Always check whether the stem asks about the Constitution or the Act.
- Q11** required you to notice that **place of birth appears in both** Articles - the question asked what is in one but *not* the other.
- Q12** offered a true premise, that EPFO is a statutory body, attached to a **false conclusion** about Article 32.

This is the texture of the APFC paper. The defence is boundaries, not volume.

16. Active Recall

Do this tomorrow, on day 7 and on day 21. Answer before checking.

- Is EPFO "State" under Article 12? Give the reason and one practical consequence.
- Name the five citizen-only Fundamental Rights.
- Which four rights does Article 19(1)(c) **not** guarantee, and which case says so?

- 4 Complete the ladder: form → ? → ? → ?. Which rung is a Fundamental Right?
- 5 What did *PUDR* (1982) hold about minimum wages, and why does it matter to Module 2?
- 6 State the exact scope of Article 24. Where does the wider ban come from?
- 7 Which two Articles can never be suspended, and which amendment secured that?
- 8 Which writ is preventive and which is curative? Which two have relaxed locus standi?
- 9 Why is Article 226 wider than Article 32, and which would you use against an EPFO order?
- 10 Which Article covers education for ages 6 to 14, and which covers under 6?
- 11 Which four Fundamental Rights operate against private persons?

17. One-Minute Revision

ONE-MINUTE REVISION

Article 12 "State" = Government and Parliament of India, State governments and legislatures, local authorities, **other authorities**. Statutory bodies included, so **EPFO is State** - bound by Article 14, writs lie under Article 226, Section 7A inquiry is quasi-judicial. **Article 13** = judicial review; doctrines of **severability, eclipse, no waiver**; amendment is not "law" (24th Amendment) but is still open to **basic structure** review.

Six Fundamental Rights; property removed by the **44th Amendment 1978 → Article 300A**.

Citizen-only: **15, 16, 19, 29, 30**.

14 equality before law (negative, British) and equal protection (positive, American); reasonable classification = intelligible differentia + rational nexus; arbitrariness barred. **15** five grounds; 15(3) women and children; 15(4) 1951; 15(5) 2005; 15(6) EWS 2019. **16** adds **descent and residence**; 16(4A) promotion 1995; 16(4B) carry forward 2000. **Indra Sawhney 1992** - 50% cap, creamy layer.

17 untouchability, **absolute**. **18** titles; Bharat Ratna not a title, no prefix or suffix.

19 six freedoms, **citizens only**; no clause (f); co-operative societies added by the **97th Amendment 2011**. **19(1)(c)** protects the right to **form** a union - **not** strike, recognition, collective bargaining or purposes (*All India Bank Employees' Association*, 1962). Strike = **legal right** under the Industrial Disputes Act.

20 ex post facto (criminal only), double jeopardy (courts only), self-incrimination (testimonial only); all persons; never suspended. **21** *Maneka Gandhi* 1978 - fair, just and reasonable; livelihood (*Olga Tellis* 1985), health, privacy (*Puttaswamy* 2017). **21A** education **6 to 14**, 86th Amendment 2002, RTE Act 2009 from 1 April 2010; **Article 45** covers under 6. **22** grounds of arrest, lawyer, **24 hours**; preventive detention beyond **3 months** needs an Advisory Board - the 44th Amendment's 2-month figure never commenced.

23 traffic, begar, forced labour; all persons; binds **private parties**; exception **compulsory service for public purposes**; **below minimum wage = forced labour** (*PUDR* 1982); Bonded Labour Act 1976. **24** below **14** in **factory, mine, hazardous**; blanket ban across all occupations is **statutory** - 2016 amendment renaming the 1986 Act the **Child and Adolescent Labour Act**; adolescents 14-18 barred from hazardous work; Factories Act s.67.

25-28 religion. **29** any section of **citizens**; **30** minorities only.

32 "soul of the Constitution"; only for Fundamental Rights; itself a Fundamental Right. **226 wider** - Fundamental Rights plus other legal rights, discretionary. Writs: **Habeas Corpus** (also private persons, anyone may apply), **Mandamus** (public duty; not private persons, not President or Governor, not discretionary duties), **Prohibition** (preventive, judicial or quasi-judicial only), **Certiorari** (curative, also administrative since 1991), **Quo Warranto** (substantive public office, any interested person).

33 armed forces, by Parliament. **34** martial law. **35** Parliament only. **358** suspends Article 19 (war or external aggression only). **359** suspends enforcement **except Articles 20 and 21**.

18. Five-Minute Wall Sheet

FIVE-MINUTE WALL SHEET

LADDER form (**FR, 19(1)(c)**) → register (**TU Act 1926**) → recognise (**not FR**) → strike (**legal right, ID Act 1947**)

ARTICLE 23 traffic + begar + forced labour · all persons · binds private parties · exception = compulsory public service · **below minimum wage = forced labour, PUDR 1982**

ARTICLE 24 below **14** · **factory, mine, hazardous** · all-occupations ban is **statutory 2016** · adolescents 14-18 hazardous barred · Factories Act s.67

CITIZENS ONLY 15, 16, 19, 29, 30

BIND PRIVATE PERSONS 15(2), 17, 23, 24

NEVER SUSPENDED 20 and 21 (44th Amendment)

358 vs 359 358 suspends the **right** (Art 19 only) · 359 suspends **enforcement** (all except 20, 21)

WRITS Habeas Corpus - illegal detention, anyone may apply · Mandamus - public duty, **not** private/President/Governor/discretionary · **Prohibition = Prevent** (judicial only) · **Certiorari = Cure** (also administrative since 1991) · Quo Warranto - substantive public office, any interested person

32 vs 226 32 = FR only, is itself a FR · **226 = wider**, FR + other legal rights, discretionary · **EPFO order → Article 226**

AMENDMENTS 24th 1971 (amendment not "law") · 42nd 1976 · **44th 1978** (property out; 20 and 21 protected) · 77th 1995 · 81st 2000 · 86th 2002 (21A) · 93rd 2005 · 97th 2011 · 103rd 2019 (EWS)

CASES *All India Bank Employees' Association* 1962 no right to strike · *Maneka Gandhi* 1978 · *PUDR* 1982 minimum wage · *Bandhua Mukti Morcha* 1984 · *Olga Tellis* 1985 livelihood · *Indra Sawhney* 1992 · *Puttaswamy* 2017 privacy

EPFO IS STATE Art 12 "other authorities" → bound by Art 14 → Section 7A is quasi-judicial → natural justice → Art 226

ACTION · NEXT IN MODULE 1

Chapter 1.4 - Directive Principles and the labour Articles 39, 41, 42, 43 and 43A, plus Fundamental Duties ★★★★★. That chapter completes the Part III / Part IV pair set up in Section 1, and it contains **Article 43**, which the 2023 paper asked directly.